

4-952. Petition to expunge arrest records and public records; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.

Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-4 [~~NMSA 1978~~]
(Upon Release without Conviction)**

Petitioner, [] unrepresented by counsel/[] represented by counsel (*select one*), under NMSA 1978,
Section 29-3A-4 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records and
public records related to the case and charge(s) below.

1. Information about Petitioner:

Date of Birth: 1961-12-31

Current Mailing Address: 1188 Upper Notch Crossing Rd Apt 14B

City: Truth or Consequences State: NM Zip Code: 87901

Home Phone #: _____ Work Phone #: _____ Cell #: _____

Other names or aliases by which Petitioner has been known (*include prior names, nicknames,
or aliases, especially if your arrest records may reflect a different name*):

2. [] Petitioner has no pending expungement cases in the Seventh Judicial District.
[] Petitioner has the following pending expungement case or cases in the _____ Judicial
District (*provide expungement case numbers for any expungement cases that may be currently
pending before the _____ Judicial District Court*):

3. [] Petitioner has never applied for expungement and been denied.

[] Petitioner has applied for expungement and been denied in the following expungement
cases (*provide the expungement case numbers*): _____

4. The following case(s) and record(s) are the subject of Petitioner's Petition to Expunge
(Include additional pages, if necessary):

District Court case number(s): _____

Metropolitan/Magistrate/Municipal Court case number(s): _____

Law Enforcement Agency case number(s): _____

Arrest number(s): _____

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:

Court of Appeals case number(s): _____

Supreme Court case number(s): _____

[5.] 6. Petitioner was released without conviction for the following charges: (Complete for each
charge sought to be expunged. Include additional pages if necessary.)

(1) Date of arrest: _____

Name of offense and statute/ordinance number: _____

Final disposition of offense: (check one) ☐ acquittal or finding of not guilty ☐ nolle

prosequi ☐ no bill ☐ referral to pre-prosecution diversion program ☐ Order of Conditional

Discharge under Section 31-20-13 (1994) NMSA 1978 ☐ other dismissal/discharge

(explain): _____

Degree of offense, if known (e.g., misdemeanor, petty misdemeanor, etc.): _____

Date of final disposition: _____

☐ Check if additional pages attached.

[6.] 7. ☐ Petitioner has no cases related to the charges sought to be expunged.

☐ The following cases are related to the charges sought to be expunged: (Include case names
and numbers for any cases that were joined either with a co-defendant or joined as the result
of a plea.)

[7.] 8. ☐ It has been one (1) year or more since the date of the final disposition of the charge(s)
Petitioner seeks to expunge.

[8.] 9. ☐ There is no other charge or proceeding pending against Petitioner.

[9.] 10. Petitioner asks this Court for an Order to Expunge arrest records and public records in
the custody of the following agencies:

☐ District Court in the Seventh Judicial District;

- ☐ _____ County Sheriff's Department;
☐ District Attorney for the _____ Judicial District;
☐ New Mexico Department of Public Safety
☐ Law Enforcement Agency (*name of agency that arrested Petitioner*); _____
☐ Metropolitan/Magistrate/Municipal Court in _____ (*location*);
☐ New Mexico State Police Investigations Bureau
☐ Other _____

~~[10.]~~ 11. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class United States mail to:

- (1) The District Attorney in the _____ Judicial District
(The District Attorney in the Judicial District where Petitioner's charge originated)

(Address)

- (2) The New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico 87504-1628

~~[11.]~~ 12. The charges sought to be expunged were originally disposed of or originated in (*select one*)

- ☐ District Court in the _____ Judicial District
☐ Metropolitan Court in _____ (*location*)
☐ Magistrate Court in _____ (*location*)
☐ Municipal Court in _____ (*location*)

~~[12.]~~ 13. Petitioner has included Petitioner's State of New Mexico, Department of Public Safety Record of Arrest and Prosecution (RAP) sheet, dated no later than ninety (90) days prior to the filing of the petition.

~~[13.]~~ 14. Petitioner has also included the following documentation related to Petitioner's criminal history:

- a. Docket sheet, arrest sheet, or other record detailing the offenses Petitioner is seeking to expunge;
b. Documentation showing final disposition of the charges Petitioner is seeking to expunge;
c. Other: _____
(*list any other documentation provided with the petition*).

~~[14.]~~ 15. ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Maria-Alejandra O'Shaughnessy-Whitfield

Printed name of Petitioner

Date

Signature of Petitioner

Mailing Address

Telephone Number

Email

Attorney Name (*if applicable*)

Date

Attorney Signature

Mailing Address

Telephone Number

Email

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after December 31, 2025.]

4-955. Certificate of service; expungement of records upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

CERTIFICATE OF SERVICE

(Required for Petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))

I hereby certify that on the _____ (day) of _____ (month) _____ (year), an endorsed copy of the Petition to Expunge New Mexico Arrest Records and Public Records under Section 29-3A-4 NMSA 1978, filed on _____ (date), and this Certificate of Service were mailed via first-class United States mail to:

- ☐ The New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico 87504-1628
- ☐ The district attorney in the _____ Judicial District
- _____
(Address)

☐ Petitioner is pro se **OR** ☐ Petitioner is represented by counsel

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Petitioner Printed Name

Attorney Printed Signature

Petitioner Address

Attorney Address

Petitioner Telephone Number

Attorney Telephone Number

Petitioner Signature

Attorney Signature

Date of Signature

Date of Signature

USE NOTES

This certificate of service must be filed with the district court.

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

4-959. Notice of completion of briefing; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO
COUNTY OF Sierra
Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.
Petitioner.

NOTICE OF COMPLETION OF BRIEFING
(for use with petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expungement Arrest Records and Public Records and that the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the _____ Judicial District;

☐ The New Mexico Department of Public Safety.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District ~~[Attorney]~~ Attorney's Response[:]

☐ The district attorney has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ The district attorney has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from the district attorney.

☐ The New Mexico Department of Public ~~[Safety]~~ Safety's (DPS) Response[:]

☐ DPS has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ DPS has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from DPS.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.2 NMRA) with this Notice of Completion of Briefing.

1
2 Maria-Alejandra O'Shaughnessy-Whitfield

3 Printed name of Petitioner

4
5 Signature of Petitioner

6
7 Mailing Address

8
9 Telephone Number

10
11 Date

12
13
14 Attorney Name (if applicable)

15
16 Attorney Signature

17
18 Mailing Address

19
20 Telephone Number

21
22 Email

23 **CERTIFICATE OF SERVICE**

24 I hereby certify that on this _____ day of _____, _____ this Notice of
25 Completion of Briefing was served by United States first class mail on the following:

26
27 (The District Attorney in the _____ Judicial District)

28
29 (Address)

30
31 (Telephone)

32
33
34 **AND**

35
36 **New Mexico Department of Public Safety**
37 P.O. Box 1628, Santa Fe, New Mexico, 87504-1628
38 (505) _____
39
40
41

42 Signature of person sending paper
43 _____

Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

4-960.2. Affirmation in support of expungement; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Release without Conviction)

I, Maria-Alejandra O'Shaughnessy-Whitfield, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: _____

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

(*Petitioner Signature*)

Maria-Alejandra O'Shaughnessy-Whitfield
(*Print Name*)

Street Address *City* *State* *Zip Code*

(*Telephone*)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

4-960.1. Notice of hearing.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

NOTICE OF HEARING

Petitioner may be entitled to expungement of arrest records or public records under the Criminal Record Expungement Act, Sections 29-3A-1 to -9 NMSA 1978. A hearing in this matter is set before the Honorable _____ as follows:

1. Date of Hearing: _____
2. Time of Hearing: _____
3. Length of Hearing: _____
4. Place of Hearing: _____

5. Matter(s) to be heard: _____

HONORABLE _____

By _____

TCAA

PARTIES ENTITLED TO NOTICE:

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner Name

Petitioner Address

Petitioner Telephone Number

Petitioner Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

USE NOTES

For the purpose of this form, the parties entitled to notice include the petitioner and any party that filed and served objections to the petition for expungement pursuant to Rule 1-077.1(G)(1) NMRA no later than sixty-three (63) days from the date of service. See Rule 1-077.1(G)(1) (providing sixty (60) days for a party entitled to notice to file an objection); Rule 1-077.1(E)(3) NMRA (providing for service by mail for actions filed pursuant to Rule 1-077.1); Rule 1-006(C) (providing for three (3) additional days where service is made by mail).

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

4-222. Application for free process and affidavit of indigency.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO
COUNTY OF _____
SIXTH JUDICIAL DISTRICT COURT

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner,

v.

No. D- _____ - _____ - _____

_____, Respondent.

APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single ☐ Married ☐ Divorced ☐ Separated ☐ Widowed ☐

I request interpretation services: ☐ yes ☐ no (If yes, please describe what you need)

INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):

A.
☐

PUBLIC ASSISTANCE

I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

☐

I currently receive the following public assistance in _____ County (please check all applicable public assistance programs): ☐ Temporary Assistance for Needy Families (TANF)

☐

Food Stamps

☐

Medicaid (for myself)

☐

General Assistance (GA)

☐

Supplemental Security Income (SSI)

☐

Public Housing

☐

Disability Security Income (DSI)

☐

Department of Health Case Management Services (DHMS)

☐

Other (please describe _____)

B. EMPLOYMENT/UNEMPLOYMENT

☐ I am currently unemployed and have been unemployed for ____ months in the past year. I am unemployed because _____.

☐ I receive unemployment benefits in the amount of \$ _____ per month.

☐ I have no income because I am unemployed.

☐ I am employed. I am paid \$ _____ per hour and work ____ hours per week. My employer's name, address and phone number is:

☐ I am married, and my spouse is unemployed and has been unemployed for ____ months in the past year because _____.

☐ My spouse receives unemployment benefits in the amount of \$ _____ per month.

☐ I am married, and my spouse is employed. My spouse is paid \$ _____ per hour and works ____ hours per week.

My spouse's employer's name, address and phone number is:

C. OTHER SOURCES OF INCOME *(Check all that apply)*

☐ I have income from another source not mentioned above.

☐ Child Support \$ _____

☐ Alimony \$ _____

☐ Investments \$ _____

☐ Community property from my spouse \$ _____

☐ Other _____ \$ _____

☐ I do not have any other sources of income.

☐ I am married, and my spouse has income from another source not mentioned above.

☐ Child Support \$ _____

☐ Alimony \$ _____

☐ Investments \$ _____

☐ Other _____ \$ _____

☐ Other _____ \$ _____

☐ I am married, and my spouse does not have any other sources of income.

☐ Another adult contributes to household income in the following amount: \$ _____

D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):

Cash on hand \$ _____
Bank accounts \$ _____
Income tax refund \$ _____
Other assets (describe below):
_____ \$ _____
_____ \$ _____

IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.

E. MONTHLY EXPENSES

House Payment/Rent \$ _____
Utilities \$ _____
Telephone \$ _____
Groceries (after food stamps) \$ _____
Car Payment(s) \$ _____
Gasoline \$ _____
Insurance \$ _____
Child Care \$ _____
Student and Consumer Loans \$ _____
Court-ordered family support obligations \$ _____
Other court-ordered payments \$ _____
Medical expenses \$ _____
Other _____ \$ _____

F. HOUSEHOLD

I live at _____,

and the head of the household is _____.

Other than myself, the other members of the household are:

<u>Name</u>	<u>Age</u>	<u>Employment</u>	<u>I Support</u>
_____	_____	_____	☐
_____	_____	_____	☐
_____	_____	_____	☐

IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.

I, _____, hereby certify that I have not received any attorney
(Name of attorney)
fee to represent _____. If any attorney fee is paid to me, I understand
(Name of applicant) that I shall pay to the court clerk from such
attorney fee any court fees and costs that may be waived by the court.

(Attorney signature)

Address

City, State, Zip Code

Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]

4-223. Order for free process.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO
COUNTY OF _____
SIXTH JUDICIAL DISTRICT COURT

_____, Petitioner,

v.

No. D-_____-_____-_____

_____, Respondent.

ORDER ON APPLICATION FOR FREE PROCESS

THIS MATTER having come before the court on Petitioner's application for free process and affidavit of indigency, or upon Petitioner's attorney's certificate supporting indigency and free process pursuant to Rule 23-114(B)(2) NMRA, and the court being otherwise advised in the premises, **FINDS** that:

☐ the applicant is entitled to free process in accordance with Rule 23-114(B)(2) NMRA.

☐ the applicant receives public assistance and is, therefore, entitled to free process.

☐ the applicant's annual gross income does not exceed _____ of the federal poverty guidelines, and the applicant is, therefore, entitled to free process.

☐ the applicant's annual gross income exceeds _____ of the federal poverty guidelines, but the applicant is not reasonably able to pay fees or costs and is, therefore, entitled to free process.

☐ on the basis of the applicant's available funds or annual gross income, the applicant is not entitled to free process.

THE COURT ORDERS that:

☐ the filing fee is waived.

☐ the filing fee is waived except for the \$ _____ alternative dispute resolution (ADR) fee.

☐ the applicant is granted free service of process by the Sheriff in _____ County, New Mexico for 1 2 3 4 5 or _____ summons(es), provided that the applicant first attempts service by certified mail pursuant to Rule 1-004 NMRA.

☐ the applicant is granted free service by the Sheriff in _____ County, New Mexico, of a temporary restraining order or _____.

☐ the applicant is to pay the filing fee on _____, 20____.

☐ interpretation services shall be provided to the applicant.

☐ free process is denied.

☐ Other:

Unless specifically granted above, this order of free process does not include the following costs: jury fees, certification fees, subpoena fees for witnesses, witness fees for hearings or trials, mailings, long distance charges, transcripts for appeals or record proper, duplication fees for audiotapes or compact discs, copy charges, publication fees, or facsimile services. Application for all other costs are to be made to the judge assigned to your case. If the applicant prevails in this law suit and collects money by judgment or settlement, the court may order reimbursement for any waived costs. If the applicant is represented by an attorney who is paid an attorney fee, any fees or costs waived by this order must be deducted from any such attorney fee and paid to the court clerk. **This order is subject to revision, modification, or rescission by the judge assigned to your case.**

JUDGE

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011; as amended by Supreme Court Order No. 17-8300022, effective for all cases pending or filed on or after December 31, 2017.]